

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                         |                           |                                                       |                                    |                                 |
|---------------------------------------------------|---------------------------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Samuel Ross                      | Team:<br>Squad #01                                      | CCRB Case #:<br>201503380 | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                         |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 04/24/2015 9:52 AM    | Location of Incident:<br>West 231st Street and Broadway | 18 Mo. SOL<br>10/24/2016  | Precinct:<br>50                                       |                                    |                                 |
| Date/Time CV Reported<br>Fri, 04/24/2015 10:16 AM | CV Reported At:<br>IAB                                  | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 04/29/2015 1:40 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POF Mercedes Conejo | 15453  | 948805 | 050 PCT |
| 2. POF Johana Rios     | 15267  | 951143 | 050 PCT |

| Officer(s)              | Allegation                                                                                           | Investigator Recommendation |
|-------------------------|------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POF Mercedes Conejo | Abuse: PO Mercedes Conejo refused to provide her name and shield number to § 87(2)(b) and § 87(2)(b) | A . Substantiated           |
| B . POF Johana Rios     | Abuse: PO Johana Rios refused to provide her name and shield number to § 87(2)(b) and § 87(2)(b)     | B . Substantiated           |

## Case Summary

§ 87(2)(b) filed this complaint with IAB on April 24, 2015 where it was entered under original log number 15-10810. The complaint was then referred to the CCRB where it was received on April 29, 2015. On April 24, 2015, at approximately 10:00 am, § 87(2)(b) who was disabled and was in possession of a valid handicapped parking permit, was looking for a parking space near a check cashing business located at 189 West 231st Street in Manhattan. § 87(2)(b) his friend, rode in the passenger seat. § 87(2)(b) saw that there was a taxi parked in a no-standing zone outside of the store. Although it was not a legal parking space § 87(2)(b) knew that police officers allowed individuals with valid handicapped parking permits to park in such spaces. § 87(2)(b) parked alongside the taxi, exited his vehicle, and asked the taxi driver to move. When the driver refused, § 87(2)(b) called 911. PO Johana Rios and PO Mercedes Conejo of the 50th Precinct responded to the scene and exited their RMP. When § 87(2)(b) explained the situation to PO Rios, she allegedly responded that his complaint was not important and that § 87(2)(b) was wasting her time. § 87(2)(b) asked to speak with a supervisor and PO Rios allegedly refused to call her sergeant. § 87(2)(b) then asked PO Rios and PO Conejo for their names and shield numbers, and both officers allegedly refused to provide them (**Allegations A and B**). The officers subsequently returned to their RMP. § 87(2)(b) approached the passenger's side window of the RMP and again asked the officers for their names and shield numbers. Both officers allegedly refused to provide them a second time (also **Allegations A and B**). § 87(2)(b) then approached the RMP and requested the officers' identifying information, and they allegedly refused to provide them a third time (also **Allegations A and B**). The officers then departed from the scene without making any arrest or issuing any summons.

§ 87(2)(g)

## Mediation, Civil and Criminal Histories

- § 87(2)(g)
- On September 9, 2015 the Office of the Comptroller notified the undersigned investigator that a search for any notices of claim filed by § 87(2)(b) or § 87(2)(b) in regards to this incident returned negative results.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

## Civilian and Officer CCRB Histories

- This is both the first CCRB complaint involving § 87(2)(b) (03. Board Review) and the first involving § 87(2)(b) (04. Board Review).
- This is the first CCRB complaint filed against PO Rios (05. Board Review) and also the first filed against PO Conejo (06. Board Review).

## Potential Issues

- § 87(2)(g)

## Findings and Recommendations

**Allegation A—Abuse of authority: PO Mercedes Conejo refused to provide her name and shield number to § 87(2)(b) and § 87(2)(b)**

**Allegation B—Abuse of Authority: PO Johana Rios refused to provide her name and shield number to § 87(2)(b) and § 87(2)(b)**

It is undisputed that PO Rios and PO Conejo responded to § 87(2)(b)'s 911 call.

As discussed above, § 87(2)(b) (07. Board Review)—who reported the incident to IAB only fifteen minutes after it occurred—and § 87(2)(b) (08. Board Review) testified that PO Rios told § 87(2)(b) that his complaint was a waste of her time. Frustrated, he requested the officers' name and shield numbers, which they did not provide. They then returned to their RMP. § 87(2)(b) approached the RMP's passenger's side and again requested the officers' names and shield numbers. They refused a second time to provide their identifying information to him, remaining silent. § 87(2)(b) then approached the passenger's side of the RMP with a pen and paper in hand. When she asked the officers for their names and shield numbers, PO Conejo pointed to the name plate on her chest. However, PO Rios told her that she did not have to provide her identifying information. PO Conejo then covered her name plate with her hand and turned her chest away from § 87(2)(b) and § 87(2)(b) so that their view of her name plate was obstructed. The officers then departed from the scene.

PO Conejo (09. Board Review) did not recall § 87(2)(b)'s presence during the incident. However, she testified that as § 87(2)(b) explained the parking dispute to PO Rios he became increasingly loud and aggressive, interrupting PO Rios when she tried to ask him questions about what had taken place. After speaking with § 87(2)(b) PO Rios instructed the taxi driver to move his taxi so that § 87(2)(b) could park his vehicle, and the taxi driver complied. § 87(2)(b) got into his car and pulled into the space vacated by the taxi cab. PO Rios and PO Conejo returned to their RMP and § 87(2)(b) then approached the passenger's side, where PO Conejo was seated. Her window was rolled down. § 87(2)(b) said something to the officers when he approached the passenger's side window but PO Conejo did not remember what he said. PO Conejo did not recall if § 87(2)(b) ever requested her or PO Rios' names and shield numbers during the encounter. She stated that if § 87(2)(b) requested either officer's name and shield number she did not hear the request.

PO Rios (10. Board Review) testified that when she and PO Conejo arrived at the scene, § 87(2)(b) explained the nature of the parking dispute to them. § 87(2)(b) was agitated and spoke loudly but PO Rios did not believe he was agitated with the officers. PO Rios then approached the cab driver and asked him to move so that § 87(2)(b) could park. The cab driver complied with her request and pulled out of the parking space and drove away. PO Rios and PO Conejo again approached § 87(2)(b) and told him that he could park in the space as he had requested. § 87(2)(b)

§ 87(2)(b) was no longer agitated and thanked the officers. PO Rios and PO Conejo then returned to the RMP. § 87(2)(b) had not yet returned to his vehicle or pulled into the parking space. PO Rios took out her memo book and began to document the incident. Her window was rolled up and she did not recall whether PO Conejo's window was up or down. They remained in the RMP at the scene for another minute while PO Rios finished her memo book entries. § 87(2)(b) stood near the front passenger's side of the RMP while PO Rios wrote, but she did not remember if he spoke to either officer. She maintained that did not hear § 87(2)(b) request either officer's name or shield number at that time. PO Rios did not recall if they interacted with a female acquaintance of § 87(2)(b)s or if a second civilian ever approached the RMP. When PO Rios finished writing, the officers departed from the scene. PO Rios testified further that at no point during the incident did § 87(2)(b) complain about the officers' behavior or express frustration with the help they gave him. § 87(2)(b) never requested to speak with a supervisor and neither officer ever refused to call for a supervisor.

According to NYPD Patrol Guide Procedure 203-09, an officer must clearly state his or her rank, name, shield number, and command to anyone who requests that he or she do so (11. Board Review).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

§ 87(2)(g)

it is therefore recommended that **Allegation B** also be closed as **substantiated**.

Squad: 1

|               |           |       |       |
|---------------|-----------|-------|-------|
| Investigator: | _____     | _____ | _____ |
|               | Signature | Print | Date  |

|             |                 |       |       |
|-------------|-----------------|-------|-------|
| Pod Leader: | _____           | _____ | _____ |
|             | Title/Signature | Print | Date  |

|           |                 |       |       |
|-----------|-----------------|-------|-------|
| Attorney: | _____           | _____ | _____ |
|           | Title/Signature | Print | Date  |